

22NWCV00028 22NWCV00028

County: los-angeles

Division: Civil Law and Motion

Department: SEL

Hearing date: 2026-06-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CSEL%2C06%2F30%2F2026

Source SHA-256: 159053e8b5db252d26c010f114f16aec73653d15168c74ea73fd172f5442ec0b

Case Number: 22NWCV00028 Hearing Date: June 30, 2026 Dept: SEL

REVISED TENTATIVE

ORDER

Plaintiff September

Properties, LLC Motions to Compel on Defendants Cynthia Jocson and Randolph

Jocson to Appear for Deposition are GRANTED.

Plaintiff is awarded \$810.00

in total for both Motions, payable within 60 days.

Plaintiff to give notice.

Background

This is an action for breach of a lease agreement regarding real property located at 10754 Artesia Blvd., Cerritos, California. On January 13, 2022, Plaintiff September Properties, LLC ("Plaintiff") filed this action against Defendants Pageantry Props and Decor, Inc., Striking Elegance Corporation, Total Production Group, Inc., Cynthia Jocson, Stephen Thomas Mcallister, Randolph Jocson, and Does 1 to 50.

On June 1, 2022, Plaintiff filed the First Amended Complaint (FAC). The FAC alleges the following causes of action: 1) Breach of Contract, 2) Breach of Guaranty, and 3) Common Count: Goods and Services Rendered.

On October 23, 2025, Plaintiff served deposition notices on Defendants Cynthia Jocson and Randolph Jocson

(collectively, “Jocson Defendants”), setting their depositions for November 13 and 14, 2025, respectively. (LeMaster-Dwyer Decls., ¶ 2, Exh. 2.) To date, Jocson Defendants have not attended their depositions and have not provided alternative deposition dates. (LeMaster-Dwyer Decls., ¶ 11.)

Plaintiff now moves to compel the depositions of Jocson Defendants.

The Court notes that Plaintiff has filed two separate Motions for each Defendant. However, as the Motions are substantially similar, the Court will address the Motions together.

No oppositions have been filed as of June 29, 2026.

Legal Standard

“If, after service of a deposition notice, a party to the action. . .without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc. § 2025.450, subd. (a).)¿

Meet and Confer

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc. § 2025.450, subd. (b)(2).)

The parties’ meet and confer efforts are detailed in the section below.

Discussion

Plaintiff now moves to compel the depositions of Jocson Defendants.

Plaintiff provides the following context regarding Plaintiff's attempts to notice Jocson Defendants' depositions: After Plaintiff initially noticed Defendants' depositions, Defendants' prior counsel requested that Plaintiff take the depositions off-calendar to allow Defendants to find a new attorney. (LeMaster-Dwyer Decls., ¶ 3.) Plaintiff served a second deposition notice, setting the depositions for December 2 and 4, 2025. (LeMaster-Dwyer Decls., ¶ 4, Exh. 2.)

On November 21, 2025, Jocson Defendants' new counsel emailed Plaintiff's counsel, requesting that the depositions be delayed and stating that he would provide dates shortly after the New Year for the depositions to take place. (LeMaster-Dwyer Decls., ¶ 5, Exh. 3.) On December 8, 2025, Plaintiff's counsel requested an update on the alternative dates. (LeMaster-Dwyer Decls., ¶ 6, Exh. 4.) On December 12, 2025, Plaintiff's counsel sent another follow-up email, and Defense counsel responded stating that he would provide deposition dates by December 17, 2025. (LeMaster-Dwyer Decls., ¶ 7, Exh. 5.)

On December 23, 2025, after Defense counsel failed to provide dates, Plaintiff's counsel served deposition notices on Jocson Defendants, setting the depositions for January 21 and 21, 2026. (LeMaster-Dwyer Decls., ¶ 8, Exh. 6.) On January 16, 2026, Defense counsel informed Plaintiff's counsel that Jocson Defendants would not be available on those dates, but did not provide further explanation. (LeMaster-Dwyer Decls., ¶ 9, Exh. 7.)

After giving Defense counsel one more chance to provide alternative dates for the depositions, Defense counsel thereafter failed to provide dates, and Plaintiff filed this Motion on January 21, 2026. (LeMaster-Dwyer Decls., ¶¶ 10-11, Exh. 8.)

No oppositions have been filed.

The Court initially notes that, on October 31, 2025, Jocson Defendants filed Substitutions of Attorney, removing their former counsel. Based on the case file, Jocson Defendants remain

self-represented. No Substitution of Attorney has been filed.

The Court finds that, to date, Jocson Defendants' depositions have not been taken, and they have not provided alternative dates for the depositions.

Accordingly, Plaintiff's Motions to Compel Jocson Defendants to Appear for Deposition are granted. The parties shall meet and confer to determine the date, time, and location of Jocson Defendants' depositions. The depositions shall take place no later than 30 days from the date of the Court's issuance of this Order. The date may be extended by agreement of the parties.

Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2025.450, subd. (g)(1).)

The Motion regarding Defendant Randolph Jocson requests \$2,607.40 in sanctions for preparing the Motion. The Motion regarding Defendant Cynthia Jocson requests \$4,171.40 in sanctions, reflecting \$2,476.70 for preparing the Motion plus \$1,694.70 for preparing an ex parte to advance the Motion to a date before trial.

The Court clarifies that, at the time the Motions were filed, trial was set for April 27, 2026. The anticipated ex parte to advance the Motion regarding Defendant Cynthia Jocson was never filed. Assumingly, the ex parte to advance was not needed because the parties filed a Stipulation to Continue Trial, and trial was continued to October 5, 2026.

The Court therefore reduces sanctions, considering that no opposition and reply were filed and that the Motions are substantially similar. Plaintiff is awarded \$810.00 in total for both Motions, payable within 60 days.